

U.S. Department of Justice
Executive Office for Immigration Review

I-589, Application for Asylum and for Withholding of Removal

Applicant: SAMMY BNMORAA ABDELLA
Submission Date: 2024-06-07T03:29:10UTC

Do you also want to apply for withholding of removal under the Convention Against Torture?: Yes
Part A.I. Information About You
1. Alien Registration Number(s) (A-Number) (if any): 2. U.S. Social Security Number (if any): 724-87-3735 3. USCIS Online Account Number (if any):
4. Complete Last Name: ABDELLA 5. First Name: SAMMY 6. Middle Name: BNMORAA
7. What other names have you used (include maiden name and aliases)?
8. Residence in the U.S. (where you physically reside) Street Number and Name: 72 UNIVERSITY DR Apt. Number: City: BETHLEHEM State: PA ZIP Code: 18015-3222 Telephone Number: 484-403-6476
9. Mailing Address in the U.S. (if different than the address in Item Number 8) In Care of (if applicable): SAM BNMORAA Telephone Number: 484-403-6476 Street Number and Name: 1 FARRINGTON SQ Apt. Number: STE 200 City: BETHLEHEM State: PA ZIP Code: 18015-3002
10. Gender (Male, Female): Male 11. Marital Status (Single, Married, Divorced, Widowed): single 12. Date of Birth (mm/dd/yyyy): 09-15-2003 13. City and Country of Birth: City: Tunis Country: TUN 14. Present Nationality (Citizenship): TUN 15. Nationality at Birth: TUN 16. Race, Ethnic, or Tribal Group: North African 17. Religion: I'm not religious
18.a. I have never been in Immigration Court proceedings.: Yes 18.b. I am now in Immigration Court proceedings: 18.c. I am not now in Immigration Court proceedings, but I have been in the past:

19.a. When did you last leave your country? (mm/dd/yyyy): 06-30-2022

Last Left Your Country Other:

19.b. What is your current I-94 Number, if any?: 911374182A2

19.c. List each entry into the U.S. beginning with your most recent entry. List date (mm/dd/yyyy), place, and your status for each entry. (Attach additional sheets as needed.)

Most Recent Entry Record:

Date of Entry: 07-01-2022

Place of Entry: NEW

Other Place of Entry:

Status: F1

Date Status Expires: 05-22-2027

Previous Entry Record(s):

20. What country issued your last passport or travel document?: TUN

21. Passport/Travel Document Number: H252573

22. Expiration Date (mm/dd/yyyy): 11-23-2025

23. What is your native language (include dialect, if applicable)?: AR

24. Are you fluent in English?: Yes

25. What other languages do you speak fluently?

FR

Part A.II. Information About Your Spouse and Children

Your spouse

1. Alien Registration Number (A-Number) (if any):

2. Passport/ID Card Number (if any):

3. Date of Birth (mm/dd/yyyy):

4. U.S. Social Security Number (if any):

5. Complete Last Name:

6. First Name:

7. Middle Name:

8. Other names used (include maiden name and aliases)

9. Date of Marriage (mm/dd/yyyy):

10. Place of Marriage:

11. City and Country of Birth:

City:

Country:

12. Nationality (Citizenship):

13. Race, Ethnic, or Tribal Group:

14. Gender (Male,Female):

15. Is this person in the U.S.? "Yes " (Complete Blocks 16 to 24). "No" (Specify location) :

Spouse Location:

16. Place of last entry into the U.S.:

Other Place of Last Entry:

17. Date of last entry into the U.S. (mm/dd/yyyy):

18. I-94 Number (if any):

19. Status when last admitted (Visa type, if any):

20. What is your spouse's current status?:
21. What is the expiration date of his/her authorized stay, if any? (mm/dd/yyyy):
22. Is your spouse in Immigration Court proceedings?:
23. If previously in the U.S., date of previous arrival (mm/dd/yyyy):
24. If in the U.S., is your spouse to be included in this application?:

Your Children. List all of your children, regardless of age, location, or marital status.

I have children: No

Total number of children:

Part A.III. Information About Your Background

1. List your last address where you lived before coming to the United States. If this is not the country where you fear persecution, also list the last address in the country where you fear persecution. (List Address, City/Town, Department, Province, or State and Country.)

Number and Street, Line 1 (Provide if Available): 33 Rue Ali Ben Ayed

Number and Street, Line 2 (Provide if Available):

City/Town: Hammam-Lif

Department, Province, or State: Ben Arous

State:

Zip Code:

Postal Code: 2050

Country: TUN

Dates: From (Month): 01

Dates: From (Year): 2019

Dates: To (Month): 09

Dates: To (Year): 2021

2. Provide the following information about your residences during the past 5 years. List your present address first.

Number and Street, Line 1: 101 Lower Sayre Park Road

Number and Street, Line 2:

City/Town: Bethlehem

Department or Province:

State: PA

Postal Code:

ZIP Code: 18015

Country: USA

Dates:From(Month): 08

Dates:From(Year): 2023

Dates:To(Month): 05

Dates:To(Year): 2024

Number and Street, Line 1: 68 University Dr

Number and Street, Line 2:

City/Town: Bethlehem

Department or Province:

State: PA

Postal Code:

ZIP Code: 18015

Country: USA

Dates:From(Month): 08
Dates:From(Year): 2022
Dates:To(Month): 05
Dates:To(Year): 2023

Number and Street, Line 1: 119 E Morton St
Number and Street, Line 2:
City/Town: Bethlehem
Department or Province:
State: PA
Postal Code:
ZIP Code: 18015
Country: USA
Dates:From(Month): 07
Dates:From(Year): 2022
Dates:To(Month): 08
Dates:To(Year): 2022

Number and Street, Line 1: 72 University Dr
Number and Street, Line 2:
City/Town: BETHLEHEM
Department or Province:
State: PA
Postal Code:
ZIP Code: 18015
Country: USA
Dates:From(Month): 05
Dates:From(Year): 2022
Dates:To(Month): 08
Dates:To(Year): 2022

Number and Street, Line 1: 33 Rue Ali Ben Ayed
Number and Street, Line 2:
City/Town: Hammam-Lif
Department or Province: Ben Arous
State:
Postal Code: 2050
ZIP Code:
Country: TUN
Dates:From(Month): 01
Dates:From(Year): 2019
Dates:To(Month): 09
Dates:To(Year): 2021

3. Provide the following information about your education, beginning with the most recent school that you attended.

Name of School: Lehigh University
Type of School: Private Research University
Location (Address):
Street Name and Number: 27 Memorial Dr W

Apt. No.: City: Bethlehem State: PA ZIP Code: 18015 Province: Postal Code: Country: USA Dates:From(Month): 07 Dates:From(Year): 2022 Dates:To(Month): 06 Dates:To(Year): 2024
4. Provide the following information about your employment during the past 5 years. List your present employment first.
Name and Address of Employer: Kimberly Smith Street Name and Number: 27 Memorial Dr W Apt. No.: City: BETHLEHEM State: PA ZIP Code: 18015 Province: Postal Code: Country: USA Your Occupation: Alumni Relations Data Assistant Dates:From(Month): 02 Dates:From(Year): 2024 Dates:To(Month): 06 Dates:To(Year): 2024
5. Provide the following information about your parents and siblings (brothers and sisters). Check the box if the person is deceased.
Relationship (Mother, Father, Sibling): Father First Name: MOORAD Last Name: ABDELLA Middle Name: City/Town of Birth: TUNIS Country of Birth: TUN Current Location: Unknown Deceased:
Relationship (Mother, Father, Sibling): Mother First Name: AMAL Last Name: NAOUALI Middle Name: City/Town of Birth: TUNIS Country of Birth: TUN Current Location: Unknown Deceased:
Part B. Information About Your Application

When answering the following questions about your asylum or other protection claim (withholding of removal under 241(b)(3) of the INA or withholding of removal under the Convention Against Torture), you must provide a detailed and specific account of the basis of your claim to asylum or other protection. To the best of your ability, provide specific dates, places, and descriptions about each event or action described. You must attach documents evidencing the general conditions in the country from which you are seeking asylum or other protection and the specific facts on which you are relying to support your claim. If this documentation is unavailable or you are not providing this documentation with your application, explain why in your responses to the following questions.

:

1. Why are you applying for asylum or withholding of removal under section 241(b)(3) of the INA, or for withholding of removal under the Convention Against Torture? I am seeking asylum or withholding of removal based on:

Race:

Religion:

Nationality:

Political Opinion: Yes

Membership in a particular social group: Yes

Torture Convention:

A. Have you, your family, or close friends or colleagues ever experienced harm or mistreatment or threats in the past by anyone?:

Yes

If "Yes," explain in detail: **1. What happened; 2. When the harm or mistreatment or threats occurred; 3. Who caused the harm or mistreatment or threats; and 4. Why you believe the harm or mistreatment or threats occurred.:** My parents were coercing me into an arranged marriage with a woman when I was seventeen. Because of my sexual orientation, I was unable to comply with their demands and faced a year of constant harassment. These incidents even led to a physical altercation with my father, where he shoved me multiple times before I ran away. Before the beginning of my senior year of high school, on my eighteenth birthday, September 15th, 2021, my parents kicked me out of the house. They threatened to report me to the Tunisian police for being gay if I didn't agree to the arranged marriage. Overnight, I found myself homeless and remained unhoused until I was accepted into a university in the United States. When my parents learned that I was moving to the United States for university, they informed the police in an attempt to keep me in the country. Three policemen apprehended me at the airport, where I was called a homophobic slur and physically assaulted. I was punched in the stomach and in the shoulder, and repeatedly questioned about my sexuality. I had to hide my identity and intentions to escape the police and make my flight. Once I was in the United States, my mother and other relatives tried to relentlessly convince me to come back to Tunisia.

B. Do you fear harm or mistreatment if you return to your home country?: Yes

If "Yes," explain in detail: **1. What harm or mistreatment you fear; 2. Who you believe would harm or mistreat you; and 3. Why you believe you would or could be harmed or mistreated.:** I fear being assaulted, imprisoned, or murdered due to my identity and the current Tunisian laws that put gay individuals in danger. Because of previous abuse from my family and the police, I have reason to believe that returning to the country would lead to additional violence towards me. I believe I would be harmed due to the legal, religious, and cultural precedents around homosexuality in my country. Returning would be a risk for my life.

2. Have you or your family members ever been accused, charged, arrested, detained, interrogated, convicted and sentenced, or imprisoned in any country other than the United States (including for an immigration law violation)?: No

If "Yes," explain the circumstances and reasons for the action:

3.A. Have you or your family members ever belonged to or been associated with any organizations or groups in your home country, such as, but not limited to, a political party, student group, labor union, religious organization, military or paramilitary group, civil patrol, guerrilla organization, ethnic group, human rights group, or the press or media?: No

If "Yes," describe for each person the level of participation, any leadership or other positions held, and the length of time you or your family members were involved in each organization or activity.:

3.B. Do you or your family members continue to participate in any way in these organizations or groups?:

If "Yes," describe for each person your or your family members' current level of participation, any leadership or other positions currently held, and the length of time you or your family members have been involved in each organization or group.:

4. Are you afraid of being subjected to torture in your home country or any other country to which you may be returned?: Yes

If "Yes," explain why you are afraid and describe the nature of torture you fear, by whom, and why it would be inflicted.: I'm afraid of being tortured or killed by the Tunisian police, who would have the full authority of the law to assault and mistreat me for being gay.

Part C. Additional Information About Your Application

1. Have you, your spouse, your child(ren), your parents or your siblings ever applied to the U.S. Government for refugee status, asylum, or withholding of removal?: No

If "Yes," explain the decision and what happened to any status you, your spouse, your child(ren), your parents, or your siblings received as a result of that decision. Indicate whether or not you were included in a parent or spouse's application. If so, include your parent or spouse's A-number in your response. If you were previously denied asylum by USCIS, an immigration judge, or the Board of Immigration Appeals, describe any change(s) in conditions in your country or your own personal circumstances since the date of the denial that may affect your eligibility for asylum.:

2.A. After leaving the country from which you are claiming asylum, did you or your spouse or child(ren) who are now in the United States travel through or reside in any other country before entering the United States?: No

If "Yes," , provide for each person the following: the name of each country and the length of stay, the person's status while there, the reasons for leaving, whether or not the person is entitled to return for lawful residence purposes, and whether the person applied for refugee status or for asylum while there, and if not, why he or she did not do so:

2.B. Have you, your spouse, your child(ren), or other family members, such as your parents or siblings, ever applied for or received any lawful status in any country other than the one from which you are now claiming asylum?: No

If "Yes," , provide for each person the following: the name of each country and the length of stay, the person's status while there, the reasons for leaving, whether or not the person is entitled to return for lawful residence purposes, and whether the person applied for refugee status or for asylum while there, and if not, why he or she did not do so:

3. Have you, your spouse or your child(ren) ever ordered, incited, assisted or otherwise participated in causing harm or suffering to any person because of his or her race, religion, nationality, membership in a particular social group or belief in a particular political opinion?: No

If "Yes," describe in detail each such incident and your own, your spouse's, or your child(ren)'s involvement.:

4. After you left the country where you were harmed or fear harm, did you return to that country?: No

If "Yes," describe in detail the circumstances of your visit(s) (for example, the date(s) of the trip(s), the purpose(s) of the trip(s), and the length of time you remained in that country for the visit(s).):

5. Are you filing this application more than 1 year after your last arrival in the United States?: Yes

If "Yes," explain why you did not file within the first year after you arrived. You must be prepared to explain at your interview or hearing why you did not file your asylum application within the first year after you arrived. For guidance in answering this question, see Instructions, Part 1: Filing Instructions, Section V. "Completing the Form," Part C.: Due to my lawful F-1 student visa status, I believe I qualify for the extraordinary circumstances exception to the one-year filing deadline. I have maintained my student status during the entirety of my time in the United States.

6. Have you or any member of your family included in the application ever committed any crime and/or been arrested, charged, convicted, or sentenced for any crimes in the United States (including for an immigration law violation)?: No

If "Yes," for each instance, specify in your response: what occurred and the circumstances, dates, length of sentence received, location, the duration of the detention or imprisonment, reason(s) for the detention or conviction, any formal charges that were lodged against you or your relatives included in your application, and the reason(s) for release.If you have been arrested in the United States, you must submit a certified copy of all arrest reports, court dispositions, sentencing documents, and any other relevant documents.:

Part D. Your Signature

I certify, under penalty of perjury under the laws of the United States of America, that this application and the evidence submitted with it are all true and correct. Title 18, United States Code, Section 1546(a), provides in part: Whoever knowingly makes under oath, or as permitted under penalty of perjury under Section 1746 of Title 28, United States Code, knowingly subscribes as true, any false

statement with respect to a material fact in any application, affidavit, or other document required by the immigration laws or regulations prescribed thereunder, or knowingly presents any such application, affidavit, or other document containing any such false statement or which fails to contain any reasonable basis in law or fact - shall be fined in accordance with this title or imprisoned for up to 25 years. I authorize the release of any information from my immigration record that U.S. Citizenship and Immigration Services (USCIS) needs to determine eligibility for the benefit I am seeking.

WARNING: Applicants who are in the United States unlawfully are subject to removal if their asylum or withholding claims are not granted by an asylum officer or an immigration judge. Any information provided in completing this application may be used as a basis for the institution of, or as evidence in, removal proceedings even if the application is later withdrawn. Applicants determined to have knowingly made a frivolous application for asylum will be permanently ineligible for any benefits under the Immigration and Nationality Act. You may not avoid a frivolous finding simply because someone advised you to provide false information in your asylum application. If filing with USCIS, unexcused failure to appear for an appointment to provide biometrics (such as fingerprints) and your biographical information within the time allowed may result in an asylum officer dismissing your asylum application or referring it to an immigration judge. Failure without good cause to provide DHS with biometrics or other biographical information while in removal proceedings may result in your application being found abandoned by the immigration judge. See sections 208(d)(5) (A) and 208(d)(6) of the INA and 8 CFR sections 208.10, 1208.10, 208.20, 1003.47(d) and 1208.20.

Print your complete name: SAMMY ABDELLA

Write your name in your native alphabet:

Did your spouse, parent, or child(ren) assist you in completing this application?: No

If "Yes," list the name and relationship.

Did someone other than your spouse, parent, or child(ren) prepare this application? (If "Yes," complete Part E.): No

Asylum applicants may be represented by counsel. Have you been provided with a list of persons who may be available to assist you, at little or no cost, with your asylum claim?: No

Signature Email Address: sn3136@columbia.edu

Signature Date: 06-07-2024

Electronic Filing Record

Part E. Declaration of Person Preparing Form, if Other Than Applicant, Spouse, Parent, or Child

I declare that I have prepared this application at the request of the person named in Part D, that the responses provided are based on all information of which I have knowledge, or which was provided to me by the applicant, and that the completed application was read to the applicant in his or her native language or a language he or she understands for verification before he or she signed the application in my presence. I am aware that the knowing placement of false information on the Form I-589 may also subject me to civil penalties under 8 U.S.C. 1324c and/or criminal penalties under 18 U.S.C. 1546(a).

Signature Of Preparer:

Date:

Complete Name of Preparer:

First Name:

Last Name:

Daytime Telephone Number:

Address of Preparer

Street Number and Name:

Apt. Number:

City:

State:

ZIP Code:

Province:

Postal Code:

Country:

Attorney State Bar Number (if applicable):

Attorney or Accredited Representative USCIS Online Account Number (if any):

Evidence
Original File Name: cover letter.pdf Category: Cover Letter
Original File Name: dean dolan-merged.pdf Category: Other Supporting Documents
Original File Name: Testimony_Letter_Lehigh_University (1) (2).pdf Category: Other Supporting Documents
Original File Name: mypassportuscis.jpg Category: Passport
Original File Name: myvisauscis.jpg Category: Visa
Original File Name: parentuscis.jpg Category: Foreign Identification Documents
Original File Name: parentsuscis.jpg Category: Foreign Identification Documents
Original File Name: reporttunisia.pdf Category: Other Supporting Documents
Supplement B, Form I-589
Additional Information About Your Claim to Asylum